

TENTATIVE RULING

Case: Melendres v. Franklin et al.
Case No. CV2024-1563

Hearing Date: April 14, 2026 **Department Eleven** **9:00 a.m.**

Defendant Benjamin's Transfer, Inc.'s motion to compel multiple physical examinations is **GRANTED**. (Code Civ. Proc., §§ 2032.020, 2032.220, and 2032.310.) The Court finds that defendant has shown good cause for the additional physical examinations requested. (Code Civ. Proc., §§ 2032.310, 2032.320, subd. (a); *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840; *Shapira v. Superior Court* (1990) 224 Cal.App.3d 1249, 1254-1255; Blackstone Decl., ¶¶ 2-10, Exhibits A-H.) The Court further finds that the additional physical examinations requested by defendant are not cumulative or duplicative. (Code Civ. Proc., §§ 2032.020, subd. (a), 2019.030, subd. (a)(1); Opp., pp. 8-9.)

Pursuant to plaintiff Javier Melendres' request: (1) a representative of plaintiff may accompany him to the examinations and may audio record the examinations; and (2) defense counsel shall provide plaintiff's counsel with: (a) a detailed report setting out the history, examinations, and findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examiner; and (b) a copy of reports of all earlier record reviews or examinations of the same condition of plaintiff by the examiner or any other physician retained by defendant. (Code Civ. Proc., §§ 2032.510, 2032.610; Opp., p. 10.) No other limitations on the examinations requested by plaintiff are permitted. (Opp., p. 10.)

Parties are **DIRECTED TO MEET AND CONFER** to determine a new date and time for plaintiff's physical examination with Dr. D. Michael Hembd. (Code Civ. Proc., § 2032.320, subd. (d).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Muller v. Dish Network L.L.C.**
Case No. CV2025-3759

Hearing Date: **April 14, 2026** **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**